

Research Methods

THE ETHNOMETHODOLOGICAL APPROACH

A study that analyzes how our nation's family courts can so seriously malfunction requires a good research method. When we undertook this study, we chose a method that did not begin with a hypothesis of our own that we could attempt to prove or disprove, because we felt such a method would be vulnerable to confusion. Specifically, we realized that if we tried to predict ahead of time which variables to study, and if those variables turned out to be the wrong ones, or if we overlooked the confounding variables that would skew our findings, we would be no closer to understanding the courts than before we began our study. For this reason, we chose at the outset to suspend our own preconceived hypotheses as to why the system was punishing mothers of abused children and examine, instead, the methods of the court participants themselves—to learn how they produce social order and meaning within the day-to-day context of their work. To do this, we used a special form of sociological inquiry, known as *ethnomethodology*, to illuminate how the system produces madness and how mothers become mutineers.

The word “ethnomethodology” means the study of “members’ methods”—the “members” of a given culture. For the purposes of our study, the “members” consist of the social participants who constitute the interactional setting of the family court, both as dispensers of justice (and their

auxiliary agents) and as parents in search of legal redress. Because we examine the methods of the members themselves, we prefer to call this kind of sociological study a *sociological* inquiry rather than a methodology, as the *only* methods to be studied here are those of the social actors themselves, who engage in the situated (i.e., produced within the context of the interactional setting) achievement of social order.

But one does not examine members' methods by asking them to explain their social activities—which is why we did not use questionnaires and other forms of survey instruments. Lynch (1997), in fact, describes in *Law and Action: Ethnomethodological and Conversation Analytic Approaches to Law*¹ what happened on one “rare occasion” when he was allowed to meet with the (criminal court) judge in his chambers and ask him to explain his rulings: “The judge laid down a ground rule, saying that he had already given his reasons in court, and therefore it was pointless . . . to ask him for the real reasons for his judgment . . . [which] points to a rich topic of inquiry: the public accountability of judicial actions and reasons as constituents of courtroom hearings” (p. 125). Thus, one can gain a much clearer insight into judicial madness from the “public” accounts of judicial reasoning, by which judges and others make their decisions accountable to co-participants in the social setting (e.g., attorneys, respondents, and prosecutors), than by asking the interactants to simply explain their conduct.

Harold Garfinkel, who founded ethnomethodology some thirty- five years ago, defined this discipline as “the organizational study of a member’s knowledge of his ordinary affairs, of his own organized enterprises, where that knowledge is treated by us as part of the same setting that it also makes orderable.”² When we apply ethnomethodology to the study of the family court system, we concern ourselves with the practical reasoning of judges (and others) that at each and every instant serves to re-create a system that reflexively gives meaning to their situated actions. Because of the inherently “reflexive” nature of social activity—a setting is re-created each time social action is produced within the

setting, which at the same time gives meaning to the situatedly produced social activity—we treat madness and mutiny as informed by a (judicial) setting, which is simultaneously reconstituted during each occurrence of a mad or mutinous act. We draw from the rich corpora of ethnomethodological studies that detail and describe how social interactants in many different settings (courtrooms, jury rooms, police stations, child welfare agencies, etc.) through their situated actions continually re-create the setting that gives contextually relevant meaning to their interactive work.

For example, Lynch (1997) studied “the judge (in criminal court) as a figure within the collaborative production of a courtroom hearing . . .” (p. 99). Lynch followed Garfinkel, who “transforms Durkheim’s (1938) classic aphorism, ‘the objective reality of social facts is sociology’s fundamental phenomenon,’ by setting out an ethnomethodological alternative to Durkheim’s analytic sociology . . . [which is] to examine the regularities . . . [of social life] . . . and to explicate how social order is achieved reflexively in and through the unrelenting practices of local parties who dwell in a society” (p. 100). In keeping with the ethnomethodological tradition, Lynch did not “objectify” judges’ work by imposing social-psychological interpretations on their social actions—examining gender or race, or trying to go “behind the scenes [to uncover what was] ‘in the judge’s head,’ behind the closed doors of the judge’s chambers, or in the judge’s social background” (p. 99). Instead, he studied how judges were “publicly available in the embodied production of the hearing” (p. 99) and examined closely how they displayed an orderly, publicly observable (by interactants in the courtroom setting)³ accounting of “their judicial actions and reasons as constituents of the courtroom hearings” (p. 125). Like Lynch, we, in our study of the family courts, do not treat judicial decision making as “a composite of variables in a regression analysis [that is] specified by measures of socio-economic status, gender, educational attainment, ethnicity, regional background, or any other social factor or combination of factors” (p. 100). If we were to do

so, we might learn nothing more about judicial decision making than our own predetermined variables would allow. We would also be in a quandary when forced to produce some rational explanation (assuming we could) for the fact that female judges in the family courts have handed down the same punitive decisions against mothers as their male counterparts. This fact would seem unintelligible in the light of a simple theory of gender bias.

Lynch's 1997 study of the criminal court also showed that the "role" of judge is itself a situated achievement as opposed to an artifact that is "somehow attached to . . . the individual actor." This is so because such roles are instead as Lynch states "a configuration in *action*" (p. 100)—something that is *reconstituted* on each occasion that situated order is achieved.

By understanding the production of social action, and in particular the fulfillment of the "role" of judge (or law guardian, social worker, etc.) as an inherently reflexive process, we were able to isolate and define those critical moments in which judges and their auxiliaries performed acts of institutional violence as an integral part of judicial madness.

THE DOCUMENTARY METHOD OF INTERPRETATION

The ethnomethodological form of sociological inquiry can help us to better understand how mothers, confronted with bizarre events in their own court proceedings, tend to interpret these events not as anomalies but as part of a bigger picture, and such interpretations often lead to acts of parental mutiny, as the parent fights not just her own case but an entire system at work. Garfinkel (1967) describes how social actors continually make practical sense and order out of what may appear a senseless and chaotic situation as the "documentary method of interpretation":

The method consists of treating an actual appearance as “the document of,” as “pointing to,” as “standing on behalf of” a pre-supposed underlying pattern. Not only is the underlying pattern derived from its individual documentary evidences, but the individual documentary evidences, in their turn, are interpreted on the basis of “what is known” about the underlying pattern. Each is used to elaborate the other.⁴ (p. 78)

Here are three brief illustrations of how mothers engage in practical sociological reasoning (the production of rational explanations to suffice “for all practical purposes”) to achieve socially ordered meaning for their unique set of family court experiences and in so doing, evince what Garfinkel has described as the “documentary method of interpretation”:

1. A woman in the process of divorcing her husband, who has abused their daughter, participates in a study of support services given to mothers of abused children by the Jane Addams College of Social Work (University of Illinois) in the late 1990s. In the course of the interview, the mother “asks hesitantly if there are very many other mothers in her situation . . . [stating] she doesn’t know anyone.” While Massat and Lundy (1999, p. 42), who conducted this study, had been primarily querying the interviewee about her access to affordable housing, public assistance, and other practical service and support needs, the mother used this occasion to socially constitute her own particular circumstances as part of a “system” by asking the researcher whether there were “very many other mothers in her situation.” Thus, in asking for other mothers in her circumstances, she chose to perceive her individual circumstances as presupposing a larger system at work rather than an instance of an anomalous set of events, even though at that time she had no evidence of any other mothers in her circumstances.
2. A New York protective mother, not yet knowing of another single mother who was likewise stripped of custody upon trying to protect

her child from abuse, exclaimed to the court-appointed expert: “You make *me* take psychological tests, when it was he [the ex-husband] who molested my child *I ought to give a course in this!*” This comment, too, implies that this mother saw her experience as only one example of a pattern large enough to justify the teaching of a “course.”

3. Dziech and Schudson (1989) point out that in the celebrated case of Washington, DC, plastic surgeon Elizabeth Morgan, “even after years in jail . . . Dr. Morgan wrote [to] her supporters not about her anger or pain, but about a legal *system* that had failed to learn and understand” (p. 206, emphasis added).

As protective mothers become increasingly entrenched in their family court cases and they come to see what is happening to them as wholly inexplicable—losing custody and visitation, sometimes going to jail for reasons that are never properly indicated on the court record—they engage in methods of practical reasoning that enable them to convert these unique and bizarre events into a socially meaningful typification or mold, which can be recognized as a “type” or an “instance of ” rather than the only one of its kind. These acts of practical reasoning can take various forms, often influenced by the mother’s social characteristics such as education, class, and race.

For example, some protective mothers who are Black and poor, and generally accustomed to a state of powerlessness, have reasoned that the family court’s consistently harsh rulings against them are part of a systematic effort to punish them for being Black and female. On occasion, Black or Latina mothers, particularly those who are well educated, have even posed Marxist arguments, claiming that the system is intent on demoralizing working-class children, perhaps because those who are weakened by troubled childhoods make better candidates for subjugation.

Mothers with a more affluent lifestyle often attribute their court sufferings to the financial power their ex-husbands may have over a politically controlled court system.

Finally, mothers who are believers in “end world” theories have reasoned that their legal nightmares are just a small part of an eschatological drama in which good is rivaled by evil; they see their individual situations as portents of the last days. For example, an upstate New York mother, herself a registered nurse, would often recite (to the members of her support group) critical passages from the New Testament, which gave her solace after losing custody and all visitation contact with her seven-year-old daughter when she sought medical care to treat the young girl’s pelvic infection, which she thought was a consequence of sexual abuse by the father.

What we see here is that whatever explanation protective mothers give, they tend to treat the peculiarities of their cases as emblematic of a larger pattern, one that has social meaning far beyond their own situations. Consequently, since the problem is perceived by the individual mother as part of a whole “system” that “sells out” many mothers for various reasons, the solution to the problem, which is an expression of mutiny or rebellion, is naturally seen as serving a constituency much greater than the mother herself. That is, if the problem is collective, the solution is naturally seen as collective too.

When we interviewed mothers, it became clear they were constantly “realizing” the presence of other mothers even when they were acting at that particular moment solely in their own case, as if each mother were speaking to a gallery of other mothers not yet visible to her at that particular moment. Thus, it was not at all unusual to hear the mothers we interviewed proclaim they were working hard to change the system for “others,” even if at that particular moment they did not actually, directly know of any “others.”

EXPLICATIVE TRANSACTIONS

One of the ways social order is achieved reflexively (i.e., with the production of each social action the system is re-created, which in turn governs or informs the production of situated actions) is through “explicative transactions.” Pollner (1979), in his study of the California traffic courts, shows how judges “transform encapsulated episodes into explicative transactions and endow them with their exemplary and definitional power” (p. 229). Pollner defines “explicative transactions” as those moments in proceedings when judges attempt to control the outcome of their decisions so as to give them the intended exemplary effect both on subsequent decisions and (retrospectively) on prior ones. He refers to such moments as special “liminal” moments (Turner 1974), in which “the veil of the illusion is briefly lifted and the enactive (not merely the reactive) capacity (Weick 1969, pp. 6371) of actions is momentarily visible” (p. 229).

In trying to illustrate explicative transactions, Pollner demonstrates how in case after case the judges’ work “occurred in real time, in public, with the consequences of any decision [for example, lenient rulings for traffic violations] unavoidably feeding back into the session and furnishing the conditions and context of subsequent decisions” (p. 242).

Among the examples Pollner gives of “explicative transactions” is that of a judge who, having heard from Caucasian defendants all morning and then confronting a Black defendant, made a deliberate point of continuing his stern rulings so that he would not be accused of showing leniency toward minority defendants (pp. 243-244). In another instance, Pollner explains that a judge’s refusal to grant a female defendant in traffic court an extension of time to pay the fine was guided by the explicative force of the case: The judge felt that this woman’s request had some merit [but] a concession in public would have meant that he might be besieged by similar requests in the future. After stating that he did not give time [for an extension], he had the woman sit until the end of

the session, at which time she was granted an extension. (p. 243) In the family courts, too, judges engage in explicative transactions. For example, an Illinois family court judge, after incarcerating a mother for refusing to send her child on a visit to a family member she believed had sexually abused the girl, justified his actions by asserting, “[M]y orders mean something and I don’t take it lightly somebody saying they’re going to defy them!” By making this declaration about his orders—“my orders mean something”—the judge was in so many words explicating (showing the exemplary and definitional power of) his rulings as unequivocally inviolable. In another example, a Brooklyn, New York, judge, when challenged by the mother’s attorney to modify an unusually restrictive visitation order, explicated his rulings—showing their exemplary and definitional power—by emphasizing his autocratic control over dispensing visitation privileges: “Supervised visitation is something that I give, and take.”

We do not look at the work of judges alone for demonstrations of explicative transactions. Auxiliary actors, too, have been found to engage in similar kinds of explicative transactions in family court cases. For example, in the early 1990s, an Idaho protective mother had her two young boys removed from her and placed in state-run foster care (although at least one of the children’s reports of sexual abuse was corroborated by the children’s pediatrician) on the recommendation of the law guardian, who unreservedly told the court that such rash action was being taken in order to “teach” the mother a “lesson” about making any subsequent complaints of sex abuse against the children’s father, a well-known medical doctor in the local hospital.

FORMULATING

Garfinkel and Sacks (1970) describe a process by which social interactants use some part of their interactive discourse “as an occasion to describe ... to explain it, or characterize it, or explicate it ... or summarize or furnish the gist of it.... saying-in-so-many-words-what-we-are-doing or ‘/formulating/’” (pp. 350351).

Here is an example of “formulating”: a Massachusetts family court judge, upon ignoring the request of a judge from a different state (who had ruled that all contact between the child and the sexually abusive father be supervised), furnished the gist of his decision to override the out-of-state court with these words: “I don’t honor courts outside my jurisdiction, as I won’t allow venue shopping!” But one does not study the formulating practices of family court judges by simply asking judges for the gist or summary of what they are doing in each case. Applying an ethnomethodological form of inquiry, we do not ask social interactants to indicate to us as researchers when they are engaged in the work of formulating, for the simple reason that social actors unproblematically perceive their actions as “taken for granted” rather than open to analytic reflection. Thus, if we were to question social actors, they would not lead us to the gist of what they are doing any better than we would have been led by a complete nonparticipant. Instead, we uncover members’ methods of formulating, or summing up, by studying how social participants in the family court setting situatedly achieve social organization, of which the work of formulating is an integral part. “”

MATERNAL FITNESS AS A SITUATED ACCOMPLISHMENT

Holstein and Gubrium (1995) demonstrated, in their study of hospital discharge hearings, how the definition of “family” is neither an a priori concept nor a fixed one but is instead the situated achieve-

ment of the participants in the court setting. They looked at court hearings for determining whether a psychiatric patient could be discharged to a suitable setting to see how “domestic meaning and order are produced and situated interactionally,” as opposed to representing the “substantive contours of a specific ideal” (pp. 896, 900). In so doing, Holstein and Gubrium showed how the definition of “family” is itself a situated achievement in which crucial judicial decisions about discharging psychiatric patients to “families” are made according to the negotiated meaning among professionals (sometimes presenting countervailing opinions) as to what constitutes in each instance a viable “family” unit.

In our study, we similarly show how the definition of a suitable family unit, or specifically a “fit” mother, is the situated accomplishment of the coparticipants in the family court hearing. But when the system becomes infected with madness, the “domestic meaning and order” of “maternal fitness” that is produced and managed interactionally as the collaborative achievements of its coparticipants—judges, law guardians, court-appointed mental health experts, and others—is changed into something that could never be justified outside the family court setting.

What happens in family court is that “maternal fitness,” as the defining basis of custody/visitation decisions, moves progressively further from the concept of a mother as the “nurturer” and closer to the notion of mother as *litigant*. As a result of family court’s situated definition of maternal fitness—one that is totally dependent on the mother’s deportment as a litigator rather than a caregiver—important decisions about custody and visitation may be determined solely by the mother’s actions as a litigant. In fact, in their written decisions, family court judges sometimes explain why a mother is “unfit” to be a custodial parent (or even to have visitation) solely in terms of her courtroom behavior and her out-of-court interactions with social workers, law guardians, mental health evaluators, and other members of the special roster of auxiliary actors found in the family courts.

For example, in a California case, a mother lost all visitation contact with her nine-year-old daughter after she was labeled a “vexatious” litigant. This label evidently justified her exclusion from the child’s life in the eyes of the judge. Similarly, in a New Jersey case, the family court judge rested much of his finding that a mother had “abused” her two sons on the fact that the mother had quarreled with Child Protective Services (CPS) caseworkers in the boys’ presence.

As family court litigation progresses, the locally managed (contextually relevant) definition of what constitutes a “fit” mother becomes increasingly at variance with how maternal fitness is practically reasoned by members of society (i.e., society outside the parameters of the family court setting), until a family court judge’s definition of what constitutes a “good” mother may become almost unrecognizable when compared with the standards of society at large. This is why protective mothers, having lost custody and visitation in the family courts, often encounter incredulity from peers, neighbors or colleagues who cannot understand why these “good” mothers lost their custody and/or visitation.

Judges themselves, as members of society at large, appear to be very much aware that their indigenous definitions of maternal fitness (based on the mother’s behavior as a litigant) are at odds with society’s views of maternal competence. When family court judges see their own (situatedly formed) definitions of maternal fitness collide with society’s views, they are at pains to reconcile these dichotomous views of what constitutes parental competence.

For instance, in one case, a family court judge justified severe restrictions on a mother’s interactions with her children, in part, with the rationale that the mother’s “shameful displays” of anger toward social workers and her “emotional outbursts before the Court” (as she pleaded to be allowed to make telephone calls to her children) were “certainly causing harm to these boys.” In so saying, the judge endorsed the argument of the CPS attorney that these actions by the mother would teach her children disrespect for “authority.” And in another case, a

judge justified terminating contact between a mother and her daughter by claiming that if the mother were to have continuing contact with her child, she would put the girl in “danger” of growing up not to trust men and develop good relationships.

In some of the more extreme cases, judges have punished protective mothers by terminating their parental rights, allowing the child to be adopted by total strangers—even though the mother was never found to be unfit in conventional terms.

Excising a mother from the life of her child, as draconian as such a measure naturally appears to the outside world, is quite easily understood when examining the situated production of “domestic meaning” in the context of a family court proceeding. In such proceedings, the “mother-as-nurturer” is completely eclipsed by “mother-as-litigant” as a situated achievement of what constitutes maternal fitness. When the family court judge, acting in accordance with their own locally constituted meaning of “good” parenting, does exclude a mother from the life of her child, all the judge has really done is to remove a “vexatious” litigant from the life of her child since the “nurturing” mother has been forgotten in the family court setting.

The reader can begin to see that by employing an ethnomethodological form of inquiry, in which we examine the practical reasoning and practical accomplishments of judges in their day-to-day rendering of decisions such as these, we can illuminate how social organization actually occurs in this setting. Then we can begin to understand how the family court system has evolved into such an inverted form of justice whereby, for instance, judges situatedly define parental fitness by a mother’s litigation activities.

Because “maternal fitness” assumes a negotiated meaning as the collaborative achievement of both mothers and court personnel, we not only examine how judges achieve situated meaning for motherhood; we employ the same ethnomethodological approach to describe how the mother herself comes to define her own parental competence as a prac-

tical accomplishment. For example, we have observed that it is common, at the beginning of a litigation, for mothers to focus their attention on stressing their mothering skills (e.g., taking their children for timely checkups, attending parent-teacher conferences). However, their defenses change dramatically as the court system shifts its focus from mother-as-nurturer to mother-as-litigant.

For example, when mothers see that the system attacks their litigation posture (by accusing them of “abusing” the court process by bringing “too many” motions or of being “harmful” to social workers by making demands for information) rather than questioning their nurturing skills, they respond by defending their litigation as opposed to their caregiving. By following the hearing record, one can see how the meaning of “maternal fitness” for the mother herself is thus produced and situated interactionally. While the mother engaged in the litigation process may begin by attacking the father’s caregiving (and defending her own), she later directs her attack on the litigation process itself, making accusations of denial of due process and gender-based discrimination. In more extreme cases, mothers have accused the courts of engaging in cover-ups and conspiracies that include law guardians, visitation supervisors, child welfare workers, and mental health evaluators. And in out-of-court statements (e.g., legislative hearings and press conferences), mothers likewise continue to defend their parental fitness by attacking the unfairness of the system. “”

MAKING AND MANAGING THE MEANING OF MATERNAL FITNESS FOR A PROJECTED COURT ROOM

As part of our study of the madness and mutiny found in the family court system, we also examined the interactional work that is “practically accomplished” by mothers and auxiliary agents, such as child protective service caseworkers, before the case ever gets to court.

Lynch (1997) demonstrated how social interactants accomplish the making and managing of the meaning of a defendant's guilt or innocence for a "projected courtroom," by showing that even before a case gets to court, "attorneys invoke the judge as an organizational principle that locally governs the presentation of the case at hand" by projecting what a judge "would treat as a serious charge or accept as a reasonable basis for reducing the charges . . ." (pp. 102103). Similarly, in our study we have paid careful attention to the intricate ways in which mothers and social workers incorporate the judge into their locally managed meaning of maternal competence.

In a discipline closely related to ethnomethodology known as conversation analysis—the study of the interactional organization of talk—Heritage and Sefi (1992) have shown the interactive work of mothers of newborn infants with government agency social workers in Great Britain. British social workers (referred to as "health visitors") are required by federal law to perform home visits on a weekly basis, usually unannounced, for the first couple of months of a child's life. Mothers in those settings must attend to the fact that their rights to care for their newborn babies can be open to serious legal challenge. Heritage and Sefi carefully studied the interactive dialogue that takes place between the mothers and the "health visitors" during such "visits."

They noted that these visits have "an unavoidable dimension of surveillance and social control . . . [as] may be inferred from the fact that health visitors are the largest single source of information and referral in cases of child abuse and neglect in the United Kingdom" (p. 362). They found that, as a result, the mothers they studied engaged in routinely patterned ways of interacting with social workers so that they would not risk being socially constituted as "neglectful" mothers.⁵ In our family court study, we found that when a mother is first interviewed by case-workers, before her case has even reached court, both mother and case-worker "project" the judge in their collaborative production of the situated meaning of maternal fitness. However, mothers and social work-

ers often invoke the judge as an organizational principal from opposing viewpoints.

Such opposing projections of how a judge would assess maternal fitness are most sharply apparent in those early interviews between mothers and CPS workers in cases in which the mother believes a child has been sexually abused and before litigation has commenced. What commonly occurs is that a mother, in her effort to prove to the caseworker that the child is in danger of continuing abuse by the father, gives graphic details of the abuse, speaking with urgency and alarm, hoping the caseworker's report will persuade a judge to protect her child from the abuse. The caseworker, however, may be likely to project the

judge as one who will seriously question the mother's parental fitness for not "preventing" such abuse from occurring in the first place or for displaying an "obsessive" concern with her suspicions. Here is where the contrasting projections of court participants can play easily into the madness of the courts—for the mother's presentation of the urgency of her situation can result in her being made the target of a CPS "neglect" charge for "failure to protect her child from abuse" or for "obsessive" or "alienating" behavior.

CHILD PROTECTIVE SERVICE AGENCY RECORDS AS PRACTICAL ACCOMPLISHMENTS

As part of our study of judicial madness, we closely examined the participation of child protective service agencies and, in particular, their production of case notes and neglect petitions for court purposes. For this book, we draw on ethnomethodological studies that look at how the construction of agency records, as an ongoing practical accomplishment, anticipates what Garfinkel and Bittner (1967) call "contractual" rather than "actuarial" uses. What this means is that the primary goal of such records is not to produce a purely statistical profile (a statement

of facts) concerning the individual but rather to produce a record that serves the purpose of entering into a “contract” (e.g., a social service plan on a neglectful parent) between the organization and the person served.

Albert J. Meehan (1997), in studying the record-keeping practices of police, explained this contractual use as an “assembling process [that] may involve the selection, recasting, and, on occasion, even fabrication of ‘the facts’ and the sequence in which they occurred” (p. 187). Meehan called attention to “processes by which . . . [an] arrest report framed . . . [the] incident in anticipation of its likely contractual uses in the court setting” (p. 187).

In much the same way, in our study of the family courts and their related agencies, we have found that the construction of social work records (e.g., case notes, neglect/abuse petitions, removal orders, case plan summaries) is informed by the madness of the family court and child welfare system, which is re-created each time such records are situatedly produced. Since protective mothers lose custody of their children to sexually abusive fathers, the “contractual,” rather than actuarial, purpose of CPS agency records causes the records to anticipate such custodial transfers of sexually abused children to abusive parents.

This fact helps to explain the otherwise baffling tendency of CPS agencies to make contradictory charges against protective mothers in the “neglect” petitions they file with family courts. Such petitions commonly state that the mother has “failed to protect” her children from sexual abuse—or, in the alternative, that she has “brainwashed” or “coached” her children to believe, falsely, they have been sexually abused. The mothers who are the targets of such petitions understandably begin to doubt the sanity of the court system at the very outset of the process, for they see that the two charges against them are plainly inconsistent. However, the use of *both* charges—even though the two are patently contradictory—actually works to facilitate the real, “contractual” purpose of the CPS petition, namely, to support a transfer of custody to

the father. The first charge—“failure to protect”—indicates an immediate danger, thus creating legal grounds for CPS officials to remove the child from the mother. The second charge—“brainwashing”—can be used against the mother as evidence of “alienation” in the ensuing custody dispute and thus allows the state to recommend a transfer of the child out of temporary foster care and into the custody of the father. Neither charge, standing alone, would have the same legal effect.

If CPS records were truly intended to serve an actuarial purpose—that is, to create a true presentation of the mother—CPS neglect petitions would seldom contain such contradictory claims, since caseworkers could hardly believe simultaneously that a child is in continuing danger of abuse and that the same child is not being abused at all.⁶ These documents are clearly intended for “contractual” use within the family court setting in which judges, law guardians, and social workers reenact the madness of the family court system in each of their actions—actions that, in turn, are informed by the demands of the topsy-turvy system. This also explains why many caseworkers, matrimonial attorneys, and family court judges are not disturbed or perplexed by such petitions—although a layman would be (and the mothers on the receiving end certainly are)—since the petitions have come to serve common, everyday contractual purposes in the family court system.

Meehan’s research on record-keeping practices is helpful in our study of CPS agency files and court records in another way as well. In studying law enforcement agencies, Meehan (1997) identified a practice by which the police “create a stock of knowledge about local individuals and situations” that he calls the “running record”: “an oral history of persons, places and incidents constructed by virtue of the police officer’s access to the everyday activities of individuals . . . [that] is a collaboratively produced and shared reporting of persons and events . . .” (p. 199).

We likewise have found that CPS agencies, law guardians, judges, and others describe protective mothers more by the “running record”—a selective dossier⁷—than by the full and accurate history of their cases.

This is how mothers whose court-ordered psychological profiles are essentially normal come to be called “crazy,” sometimes even “psychotic,” by the judge and the auxiliary players. (For instance, although one mother’s psychiatric evaluation showed no mental illness, the judge, referring to her allegedly excessive litigation, called this a product of her “sickness.”) Meehan (1997) showed that the “running record” in the police department is an oral instrument clearly distinguished from the written record, which “attains its legitimacy because it is impersonally produced and read” (p. 199). The protective mother’s “running record,” in which she is labeled, for instance, a “vindictive” ex-wife, is likewise an oral production rather than a written one. It is part of the very nature of running records as oral instruments that their “information sharing,” according to Meehan, “is shaped by the political alliances and personal agreements” among members of an organization. This type of information sharing prevents anyone from the outside from learning about (let alone affecting) what goes on inside.

This is one reason why, when state and federal investigators have tried over the years to uncover the causes of abuses of the family courts, they have not been particularly successful. A great deal of the systemic madness has all too often been contained in “running records” of protective mothers who seek relief from the courts; and these “running records,” communicated orally, are selectively shared with an inner circle that fits the political purpose for the construction of the running record in the first place.

We have found that “running records” have become so prevalent in protective mother cases that it is a widespread practice for family court judges to engage in *ex parte* communications (i.e., communications between a judge and some individuals concerned in a case without the knowledge or participation of the other parties) with CPS workers, law guardians, mental health experts, sometimes even the father’s own attorney.⁸ In these communications, criticism of the (absent) mother is commonplace.

Meehan observed that these running records are “evoked at key points in decision-making,” such as when the police determine whether to make an arrest of a juvenile based on information about the parents and the likelihood that they will “challenge the officer and side with their child” (pp. 200201). We found that in the family courts the dependence on the running record, rather than on the substantive facts of the case, carries over into a judge’s decision making. We have found that some crucial family court orders are based on “facts” that were never properly in the record—and may not even have been facts.⁹ Sometimes, critical rulings pertaining to custody and visitation are handed down at hearings at which the mother and her counsel are absent.

We can thus begin to see how the application of the ethnomethodological form of sociological inquiry to the family court system provides special insight into how judges and their auxiliaries produce and manage social organization as a situated achievement. By applying ethnomethodology, we learn how both judges and protective mothers organize their situated practices and, in so doing, re-create the judicial madness and parental mutiny that have come to characterize the American family court system today.